RATIO / CASE READING SHEET

Khadzhiyev and Muradova v. Turkmenistan

UN Human Rights Committee | CCPR/C/122/D/2252/2013 | Turkmenistan | 2018

Public-reference AI draft | source quotes and PDF pages verified; interpretation needs review

Ratio reading aid, not an official case summary. Verify against the full judgment before use. No assessment of an individual case's prospects.

Forum and procedural stage

The communication was submitted to the UN Human Rights Committee under the Optional Protocol (article 5 (4)) concerning communication No. 2252/2013. The Committee considered the admissibility and merits at its 122nd session.

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Material facts

Ms Ogulsapar Muradova was charged with illegal acquisition and trafficking of ammunition (article 287 (2) of the Turkmen Criminal Code), detained without external contact, tried on 25 August 2006, convicted and sentenced to six years, and died by suicide in custody in September 2006. Her brother Annadurdy Khadzhiyev and others were also detained; the family faced intimidation and lack of access to legal counsel.

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Issue and actual outcome

The author alleged violations of articles 6(1) and 7 of the ICCPR (fair trial and prohibition of torture) and related provisions. The Committee found a violation of articles 6(1) and 7, concluding that the State failed to conduct a prompt, effective, and impartial investigation into Muradova’s death.

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Deciding body's reasoning

The Committee reasoned that the State’s failure to provide any investigative findings or credible explanations for Muradova’s death amounted to a breach of the right to a fair trial and the prohibition of torture. It recalled its jurisprudence that criminal investigation and prosecution are necessary remedies for such violations, citing General Comment 31 (2004).

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General comparison factors and limits

The Committee noted the persistent lack of accountability ten years after the death, the absence of any indictment or prosecution, and the continued anguish of the brother, highlighting the need for effective investigation standards (Minnesota Protocol) and the limits of domestic remedies. Unresolved matters include the identification of those responsible for the alleged torture and the adequacy of any subsequent remedial measures.

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